

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY

Customer #

Trf from:

Reviewer:

Initials

Date

Agent:

Mgr:

To be completed by City / Town / County Clerk

Local License #

License

Fees

Annual Fee:

\$

300

Prorated Fee:

\$

Transfer Fee:

\$

100.00

Publishing Fee:

\$

100.00

Date filed with clerk:

1 / 12 / 2024

Advertising Dates: (2 Consecutive Weeks Prior to Hearing)

3/28

&

4/3/2024

Public Hearing Date:

4 / 8 / 2024

Publishing Fee Direct Billed to Applicant: ☐

License Term:

4 / 1

Month

Day

2024

Through

3 / 31

Month

Day

Year

2025

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

Applicant (Business Name):

Sproter scoreboard LLC

Doing Business As (DBA) / Trade Name:

Sproters Scoreboard Bar

Building to be licensed / Building Address:

419 E. Lincolnway

(Address Number, and Suite or Unit Number, and Street or Road Name)

Cheyenne WY 82001

City

State

Zip

County

Laramie

Local Mailing Address:

Same

(Address Number or PO Box, and Suite or Unit Number, and Street or Road Name)

City

State

Zip

County

Local Business Telephone Number:

307-514-9520

Fax Number:

Business E-Mail Address:

carla.wink65@gmail.com

Business Primary Contact:

Carla

Winkler

First Name

Last Name

FILING FOR☐ NEW LICENSE☒ TRANSFER OF LOCATION☐ TRANSFER OF OWNERSHIP☐ ASSIGNMENT LETTER MUST BE ATTACHED

FORMERLY HELD BY:

FILING IN (CHOOSE ONLY ONE)☒ CITY / TOWN OF:

Cheyenne

☐ COUNTY OF:**FILING AS (CHOOSE ONLY ONE)**☐ INDIVIDUAL☐ PARTNERSHIP☐ LP☐ LLP☐ LLLP☒ LLC☐ LC☐ CORPORATION (INC)☐ POLITICAL SUBDIVISION☐ ORGANIZATION☐ OTHER**TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)**☒ RETAIL LIQUOR LICENSE

PRIMARY BUSINESS TYPE

(CHOOSE ONLY ONE)

ON-PREMISE BAR

☐ OFF-PREMISE PACKAGE STOREON ~~OFF~~ PREMISE BAR &

PACKAGE STORE

☐ RESTAURANT LIQUOR LICENSE☐ BAR AND GRILL LIQUOR LICENSE☐ RESORT LIQUOR LICENSE

LIMITED RETAIL LIQUOR LICENSE

(CLUB)

☐ VETERANS CLUB☐ FRATERNAL CLUB☐ GOLF CLUB☐ SOCIAL CLUB☐ MICROBREWERY PERMIT☐ WINERY PERMIT☐ MANUFACTURER SATELLITE PERMIT☐ WINERY SATELLITE PERMIT☐ COUNTY MALT BEVERAGE PERMIT☐ SPECIAL MALT BEVERAGE PERMIT**SPECIAL STATUTORY DESIGNATIONS (CHOOSE ONLY ONE)**☐ COMMERCIAL AIRPORT (W.S. 12-4-201(d)(iv))☐ GOLF CLUB (W.S. 12-5-201(f))☐ GUEST RANCH (W.S. 12-5-201(f))☐ RESORT☐ GOLF CLUB-POLIT. SUBDIVISION☐ Other:

(W.S. 12-4-401(iv) / 12-5-201(f))

(W.S. 12-4-301(e) / 12-5-201(f))

OPERATIONAL STATUS (To Assist the Liquor Division with scheduling inspections (W.S. 12-1-101(a)(xii) / 12-2-301(c) / 12-4-103(a)(iv)))

JLL TIME

MONTHS OF OPERATION

from

to

All Year (Jan-Dec)

☐ SEASONAL

DAYS OF WEEK OF OPERATION

from

to

Every Day (Mon-Sun)

☒ NON-OPERATIONAL / PARKED

HOURS OF OPERATION

from

to

☐ 24 Hours a Day

ALL APPLICANTS MUST COMPLETE QUESTIONS 1-3**1. BUILDING OWNERSHIP: W.S. 12-4-103(a)(iii)**

Does the Applicant own or lease the licensed building?

- (a) The Applicant **OWNS** the licensed building. ☐ YES (own)
 (b) The Applicant **LEASES** the licensed building. ☒ YES (lease)

If the building is leased, please submit a copy of the lease and indicate:

- (i) Lease term expiration date; located on page
- 2
- paragraph
- 1

Note: The lease term **MUST** continue at least through the term of the liquor license or permit

- (ii) Sales provision for alcoholic or malt beverages; located on page
- 12
- paragraph
- 4

Note: The lease **MUST** contain a provision for **SALE OF ALCOHOLIC or MALT BEVERAGES**.**2. LIQUOR BUSINESS CONTROL: W.S. 12-4-601(b)**

- (a) To operate the liquor business, has the business or license/permit been assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license or permit or the licensed building? ☐ YES ☒ NO

- (b) If the answer was
- YES**
- to 2(a) above, explain fully and submit any documents in connection there within.

3. INTEREST IN LICENSE OR PERMIT: W.S. 12-5-401, 12-5-402, 12-5-403

Does any alcohol manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm:

- (a) Hold any interest in the license/permit applied for? ☐ YES ☒ NO
 (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in the business? ☐ YES ☒ NO
 (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
 (d) If the answer was **YES** to any of the above, explain fully and submit any documents in connection there within.

4. RETAIL LIQUOR LICENSE-COUNTY LOCATIONS ONLY: W.S. 12-4-201(f)(ii)Is the licensed building within five (5) miles of an incorporated town or city? YES ☐ NO**5. RETAIL LIQUOR LICENSE-COMMERCIAL SERVICE AIRPORTS ONLY: W.S. 12-4-201(m)**

- (a) Will food and beverage services be contracted or subcontracted? ☐ YES ☐ NO
 1. If **YES**, is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

6. BAR AND GRILL LICENSE OR RESTAURANT LIQUOR LICENSE ONLY: 12-4-413(a) / W.S. 12-4-407(a)Is a copy of the valid food service permit or the approved permit application attached? ☐ YES ☐ NO**7. RESORT LIQUOR LICENSE: W.S. 12-4-401 through W.S. 12-4-403(b)**

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
 (b) Include a restaurant and a convention facility; a convention facility that will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
 (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
 (d) If no on question (c), have a ski resort facility open to the general public in which has been committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
 (e) Will food and beverage services be contracted or subcontracted? W.S. 12-4-403(b) ☐ YES ☐ NO
 1. If **YES** to (e), is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

8. MICROBREWERY PERMIT ONLY: WHOLESALE DISTRIBUTION: W.S. 12-2-201(a)

- (a) Will the microbrewery self-distribute its products or distribute through a licensed wholesaler? ☐ YES ☐ NO

If **YES**, a wholesale malt beverage license from the Liquor Division will be required.

9. LIMITED RETAIL (CLUB) LIQUOR LICENSE:**FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)**

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LIQUOR LICENSE:**VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):**

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LIQUOR LICENSE:**GOLF CLUBS W.S. 12-1-101(a)(iii)(D) / W.S. 12-4-301(e):**

- (a) Does the golf club have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Does the Applicant, maintain, or operate a bona fide golf course together with a clubhouse? ☐ YES ☐ NO
- (c) Is the Applicant a Political Subdivision of the state that owns, maintains, or operates this golf course? ☐ YES ☐ NO
1. Will food and beverage services be contracted or subcontracted? W.S. 12-4-301(e) ☐ YES ☐ NO
2. If YES, is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LIQUOR LICENSE:**SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E) / W.S. 12-4-301(b):**

- (a) Does the club have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax-exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Is a true copy of the club bylaws attached to this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition(s) Attached) ☐ YES ☐ NO

13. Applicant is Filing As Individual, Partnership, Political Subdivision, Organization or Other:**W.S. 12-4-102(a)(ii) & (iii)**

Each individual, partner or officer (as applicable) must complete all of the information below.
 (If more information is required, list on a separate piece of paper and attach to this application.)

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been convicted within the previous 10 years of:	
					a Felony Violation Relating to Alcoholic Liquor or Malt Beverages?	any Violation Relating to Alcoholic Liquor or Malt Beverages?
Robert Winkler	7/15/61	7305 Ridge Rd	307-1644-4888	YES ☒	YES ☒	YES ☐
Carla Winkler	8/15/65	7305 Ridge Rd, Chevy Chase, MD 20815	307-1644-4888	YES ☒	YES ☒	YES ☐
				YES ☐	YES ☐	YES ☐
				NO ☐	NO ☐	NO ☐
				YES ☐	YES ☐	YES ☐
				NO ☐	NO ☐	NO ☐
				YES ☐	YES ☐	YES ☐
				NO ☐	NO ☐	NO ☐

14. Applicant is Filing As a Corporation, Limited Company, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock or ownership of the corporation, limited liability company, limited liability partnership, or limited partnership.

Each Officer, Director or LLC member must complete all of the information below.
(If more information is required, list on a separate piece of paper and attach to this application)

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	No. of Years in Corp or LLC	% of Corporate Stock or Ownership Held	Have you been convicted within the previous 10 years of:	
						a Felony Violation Relating to Alcoholic Liquor or Malt Beverages?	any Violation Relating to Alcoholic Liquor or Malt Beverages?
Carla Winkler	8/15/65	7305 Ridge Rd Cherry Hill NJ 08009	307-640-4888	8	100%	YES ☐ NO ☒	YES ☐ NO ☒
Robert Winkler	7/15/61	7305 Ridge Rd Cherry Hill NJ 08009	307-640-2899	8	100%	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

REQUIRED ATTACHMENTS:

- ☐ A statement indicating the financial condition and financial stability of the Applicant. W.S. 12-4-102(a)(vi).
- ☐ If transferring a license or permit to another Applicant, attach a form of assignment from the current licensee to the new Applicant authorizing the transfer. W.S. 12-4-601(b).
- ☐ A copy of any lease agreements. W.S. 12-4-103(a)(iii)
- ☐ Bar & Grill and Restaurant liquor license Applicants: attach a copy of the current Food Service Permit or the approved permit application for the Applicant and for the licensed building location. 12-4-413(a) / W.S. 12-4-407(a)
- ☐ If food and beverage services will be contracted or subcontracted attach a copy of the contract or lease agreement W.S. 12-4-201(m) / W.S. 12-4-301(e) / W.S. 12-4-403(b)
- ☐ If filing for a Golf Club or Social Club liquor license attach a copy of the club's bylaws W.S. 12-4-301(c)

OATH OR VERIFICATION

Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers. W.S. 12-4-102(b)

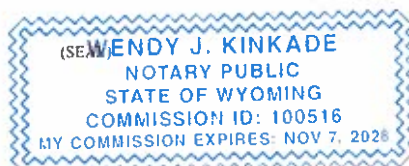
Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING)
COUNTY OF Taramio) SS.

Signed and sworn to before me on this 4 day of Jan, 2024 that the facts alleged in the foregoing instrument are true by the following:

- | | | |
|--|--|----------------------------------|
| 1) <u>Carla Winkler</u>
(Signature) | <u>CARLA WINKLER</u>
(Printed Name) | <u>Dancey President</u>
Title |
| 2) _____
(Signature) | _____
(Printed Name) | _____
Title |
| 3) _____
(Signature) | _____
(Printed Name) | _____
Title |
| 4) _____
(Signature) | _____
(Printed Name) | _____
Title |
| 5) _____
(Signature) | _____
(Printed Name) | _____
Title |

Witness my hand and official seal:



My commission expires: 11/7/28

Wendy J. Kinkade
Signature of Notary Public

11 January 2024

To Whom It May Concern,

We recently sold Scooters Bar to include the whole building. The new buyers did not want the liquor license so we currently have it for sale with Teri Cassidy of #1 Properties. We had the entire thing for sale for 1 ½ years. We thought we had the license sold recently but that fell thru on the buyer's part. Our realtor is currently in talks with another buyer. Our intention is to sell the license as soon as possible but until then we plan to park it at the address listed in the lease (attached).

Please let me know if you have any questions.

Signed,

Carla M. Winkler

President, Scooters Scoreboar LLC

307-640-4888

Lease Agreement

This agreement entered into this date: by and between:

Scooters Scoreboard LLC

(Tenant)

And

Westland Holdings Inc

"Owner/Landlord"

Witnessed: That for the consideration of lease payments and covenants adherence on the part of the Tenant, the Owner leases to the Tenant, and the Tenant hires from the Owner, for commercial use only, the premises known as Westland Holdings, Inc, 619 East Lincolnway, Cheyenne, WY 82007, leasing an area in the building to park the liquor license. Lease payment is due in advance on the first (1st) day of each month and every month at \$10 (ten) dollars per month beginning on the date of signed agreement.

The Tenant and Owner/Landlord further agree:

1. The term if for 365 days from date of signed agreement
2. Zero-dollar security deposit is required.
3. The premises shall be occupied only by the tenant and no other entities.
4. Tenant's use of the premises shall be: park the liquor license.
5. Tenant shall not violate any governmental law in the use of such premises, permit waste or nuisance, annoy, molest, or interfere with any neighbor or unit.
6. No repairs, decorations or alterations shall be done.
7. No portion of said premises may be sublet nor this Agreement assigned.
8. Tenant has inspected the premises, furnishings and equipment and has found the same to be satisfactory. All plumbing, heating, and electrical are operative.
9. To keep the premises clean, sanitary and in good working order and repair during the term of this tenancy, and to surrender the same in like condition.
10. Not to store or use hazardous waste or chemicals in or about the premises.
11. The undersigned Tenant, whether or not in actual possession of the premises, jointly and severally liable for all lease payments incurred during the term of this agreement, and for all damages to the premises caused by or permitted by Tenant, their guests and invitees.
12. If any legal action or proceeding be brought by either party to enforce any part of this Agreement, the prevailing party shall recover, in addition to all other relief, reasonable costs, including attorney's fees, whether or not the action proceeds to judgement.
13. The owner or his representative may enter the premises at any time, to make necessary or agreed repairs, decorations alterations, or improvements.
14. It is understood by Tenant that Tenant's personal effects are not insured by Owner and that Tenant may insure their own personal property with their own policy. Tenant agrees that Owner

LEASE

THIS LEASE made and entered into this 26th day of December, 2023, by and between Scooters Scoreboard, LLC, hereinafter called "Lessee", and Westland Holdings, Inc., hereinafter called "Lessor".

Premises: The west 41' of the building located at 619 East Lincolnway, Cheyenne, WY.

It is mutually agreed between the parties hereto as follows:

1. **TERM:** Lessor hereby leases to Lessee, and Lessee hereby leases from Lessor the said Premises for a term beginning January 1, 2024 and ending on January 1, 2026.
2. **RENT:** Lessee shall pay as fixed rent for the Premises, the sum of \$1,000.00 monthly installments, in advance on the first day of each and every month during the term.
3. **LATE CHARGES:** If any installment of rent or any other sum due from Lessee is not made within three days after said amount is due, Lessee shall pay to Lessor a late charge equal to three hundred dollars. Acceptance of Late charges shall in no event constitute a waiver of Lessee's default nor prevent Lessor from exercising any rights granted herein or under the law.
4. **USE OF PREMISES:** The premises shall be used for restaurant purposes only. Lessee shall, in the conduct of its business on premises, at Lessee's expense, comply with and carry out all applicable laws, ordinances, regulations and orders of public authority. Lessee shall also at his expense, comply with and carry out all applicable laws, ordinances, regulations and orders of public authority respecting the structure and other conditions of the premises. **Lessee shall be allowed to sell malt and alcohol beverages providing it holds the appropriate restaurant liquor license from the City of Cheyenne.**
5. **CONDITIONS OF PREMISES:** Lessee's entry into possession of the premises shall be deemed its acceptance of the premises in good order, condition and repair. Upon termination of this Lease, whether by lapse of time or otherwise, Lessee shall immediately yield up possession, and surrender same to Lessor, with the leased premises in a good state of repair and condition.
7. **REPAIR AND MAINTENANCE:** Lessee shall, at its expense, keep and maintain the premises in a clean, slightly, sanitary order and in good condition and repair and in compliance with all local, state and federal regulations. Lessee shall not cause or permit any waste or nuisance in or about the leased premises.
8. **ACCESS:** Lessor, and his duly authorized agents, after notice to Lessee, shall have access to the premises at all reasonable times for the purpose of inspecting the same.
9. **LIENS.** Lessee agrees and covenants that it will not cause or suffer the creation of any mechanic's liens, or other liens, for any labor performed or materials furnished for or on behalf of Lessee, which may cloud or impair Lessor's title to the leased premises; and that if any such lien shall arise due to an act or omission of Lessee, Lessee shall promptly remove the same at its own expense.
10. **SECURITY:** To secure the payment and all other terms of this lease, Lessee agrees and covenants that Lessor shall have at all times a valid lien upon all equipment, fixtures and furniture of Lessee used by Lessee on the premises. Upon the occurrence of any event of default by Lessee, Lessor shall have the option, in addition to any other remedies provided under law or herein, to enter the premises with or without permission of Lessee and take possession of any and all equipment, fixtures, and furniture of Lessee without liability, and to sell said equipment, furniture and fixtures without notice at a private sale, and to apply the proceeds thereof, less any expenses of the possession and sale as a credit against sums due to Lessor. Lessor may file a UCC lien statement.



11. NON-LIABILITY: Lessee hereby waives any and all claims against Lessor or Lessor's agents or employees for any loss of, or damage to, personal property or for any injury sustained on or about the premises arising from any event.

12. ALTERATIONS: Lessee shall not make any alterations to the leased premises, or any part thereof, without the consent of Lessor first had and obtained. Lessor may require Lessee to remove any such alterations, improvements, or additions at the expiration of the term and to restore the premises to its prior condition. Lessee shall at its expense, repair any damages caused to the premises by removal. Any addition to, or alterations of, the leased premises shall become part of the realty and belong to Lessor; provided that nothing herein shall affect Lessee's rights with respect to trade fixtures and other movable property. Lessee shall, at its expense, repair any damage caused to the leased premises by the removal of its property.

13. DESTRUCTION OF PREMISES: In the event that the leased premises shall be rendered unfit to a material extent for use by Lessee due to fire, age, normal wear and tear, earthquake, flood, windstorm or other event, the rent payable under this Lease shall abate during the time such damage remains unrepaired. Lessor shall promptly proceed to repair the Premises or may choose to terminate the lease.

14. ASSIGNMENT: Lessee shall not assign this Lease without the prior written consent of Lessor. Lessor's consent to one assignment shall not be deemed a consent to any other or further assignment. Upon Lessor's consent to an assignment of this Lease and such assignee's written assumption of the payment of rent and performance of all other obligations to be performed on the part of Lessee with respect to the leased premises, the Lessee's liability hereunder shall cease and terminate. Lessor may at its option assign this lease.

15. SUBLET. Lessee shall not have the right to sublet the leased premises for any purpose.

17. INDEMNITY. Lessee shall reimburse and hold Lessor harmless from any claim by, or liability to, any third person arising from the use of the leased premises by Lessee, or any licensee, customer or contractor of Lessee, provided that such loss, damage or injury did not result from a negligent or wrongful act of Lessor.

19. DEFAULT. The occurrence of any one or more of the following events shall constitute a default and breach of this sublease by Lessee:

- a. The vacation or abandonment of the premises by Lessee.
- b. The failure by Lessee to make any payment of rent or any other payment required to be made by Lessee hereunder, as and when due.
- c. The failure by Lessee to observe or perform any of the covenants, conditions or provisions of this sublease to be observed or performed by Lessee, other than described in Paragraph (b) above, where such failure shall continue for a period of 30 days.
- d. The filing of a petition for bankruptcy by the Lessee.
- e. The appointment of a trustee or receiver to take possession of the assets of the Lessee.
- f. The attachment, execution or other judicial seizure of Lessee's assets located at the premises.

20. REMEDIES. In case the Lessors shall fail or neglect to keep and perform any of the covenants or agreements in this Lease contained on the part of the Lessors to be kept and performed, the Lessee, in addition to all other remedies now or hereafter afforded or provided by law, may at its election perform such covenant or agreement for or on behalf of the Lessors or make good any such default, any amount or amounts which the Lessee shall advance on that behalf shall be repaid by the Lessors to the Lessee on demand, together with interest thereon at the legal rate, from the date of such advance to the repayment thereof in full, and if the Lessors shall not repay any such amount or amounts upon demand, the Lessee may, without forfeiture of its term herein, deduct same, together with interest thereon as aforesaid, from the next installment or installments of rent to accrue under this Lease.

In case of any default in payments by Lessee this lease may be terminated by Lessor by written notice without prior notice or demand. In the event of any other default by Lessee, Lessor shall provide written notice to Lessee and Lessee shall have twenty days (20) from the date of mailing of such notice to cure such default. In the event the default is not

aw

SD.

cured timely Lessor at its election may terminate the lease with notice to Lessee in writing. Lessor may in the alternative pursue Lessee for any amounts in default and may pursue these or any other remedies available at law. In the event Lessor institutes collection actions whether requiring the filing of suit or otherwise, Lessee shall in addition to the amounts due under the lease be required to pay all costs of collection including but not limited to all costs and attorney's fees.

21. WAIVER. No waiver by Lessor of any breach or default by Lessee in the performance of any of the provisions, agreements or covenants hereunder shall be construed as a waiver of such provision, agreement or covenant or of any other or subsequent breach thereof.

22. HOLDING OVER. In the event Lessee continues to occupy the leased premises after the last day of the term of this Lease or the extended term and Lessor elects to accept rent thereafter, or otherwise consents to such continued occupancy, a tenancy from month-to-month shall be created at the same rental as herein provided, computed on a monthly basis, and on the terms and conditions of this Lease so far as applicable.

23. MODIFICATION. Lessor and Lessee agree that this Lease contains the entire agreement between them and shall not be modified in any manner except by an instrument in writing, signed by each of them.

24. BINDING. The terms of this Lease shall become binding upon the successors, administrators, executors, heirs and assigns of the parties hereto.

25. REVOCATION. All prior agreements, leases, lease assignments, lease amendments between Lessor and Lessee are hereby revoked and terminated.

26. CHOICE OF LAW. This sublease shall be governed by the laws of the State of Wyoming.

27. DEPOSIT. Lessor is holding a \$7,500.00 deposit from Lessee. This deposit is to insure Lessee complies with all the terms of this lease. This deposit will be refunded to Lessee once the lease has been terminated by time and properly vacated.

28. RIGHT TO TERMINATE. Lessor may terminate this Lease at any time. If Lessor chooses to terminate this lease, it will give written notice to Lessee. Upon notice, Lessee will have 90 days to vacate the property. No lease payments will be owed by Lessee to Lessor once notice has been made. The lease terminates once Notice is given and Lessee has 90 days to vacate. No utilities will be owed by Lessee during the 90 day vacate period.

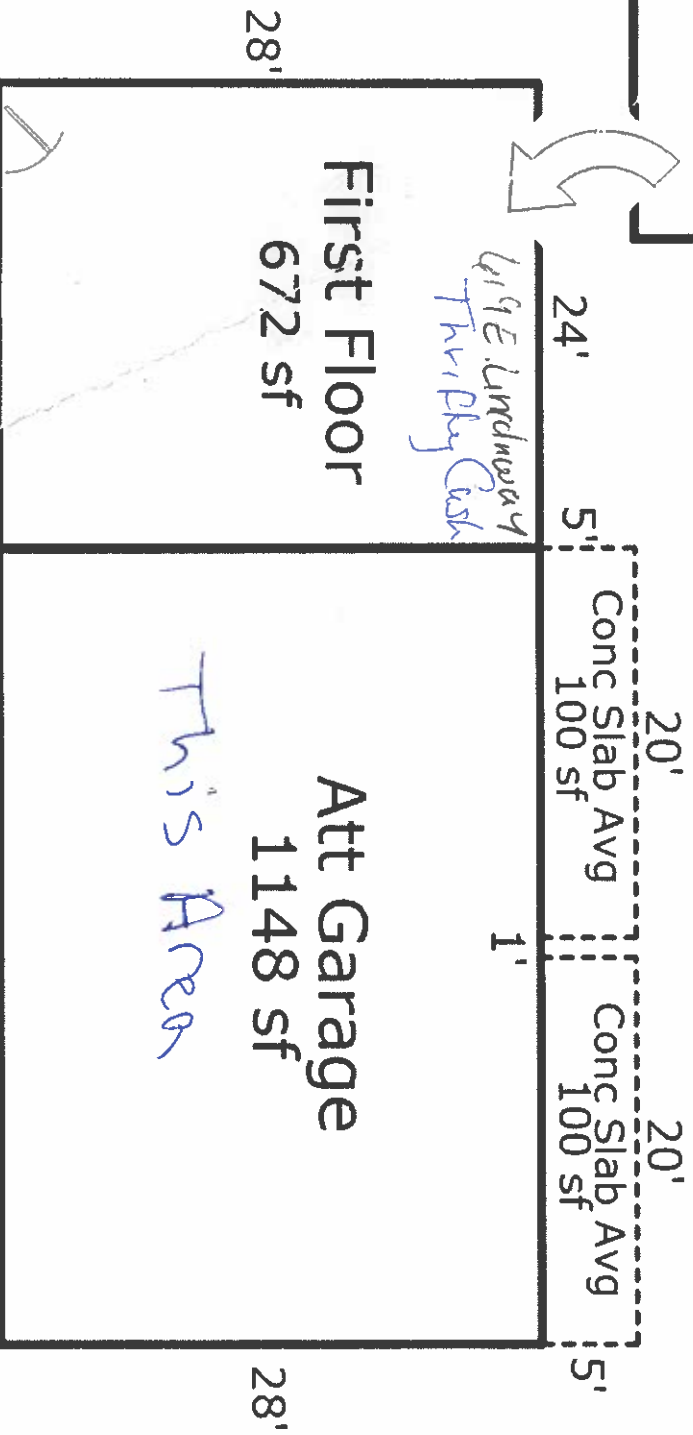
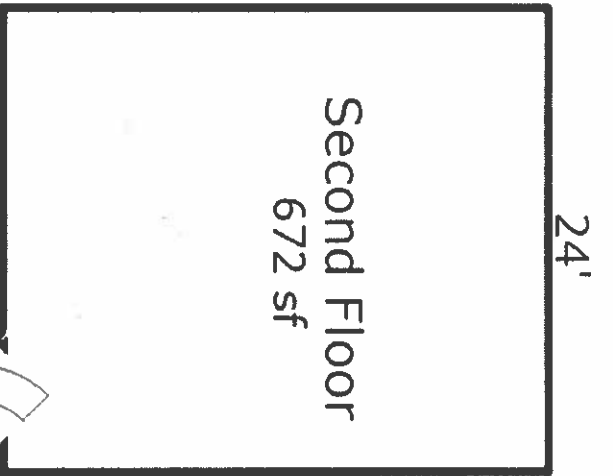
29. SEVERABILITY. The invalidity of any provision of this sublease, as determined by a court of competent jurisdiction, shall in no way affect the validity of any other provision hereof.

30. ENTIRE AGREEMENT. This Agreement sets forth the entire understanding of the parties; there are no oral representations relied upon by any party hereto, which are not specifically set forth herein; this Agreement supersedes any and all previous agreements, and this Agreement may be modified only in writing, executed by the necessary parties hereto.

LESSEE: Scooters Scoreboard, LLC: Cullen Little, Owner/President

LESSOR: Westland Holdings, Inc. [Signature] President

[Signature]



NORTH ↖